

HCS HBs 1945 & 2570 -- HEALTH CARE

SPONSOR: Hruza

COMMITTEE ACTION: Voted "Do Pass with HCS" by the Standing Committee on Health and Mental Health by a vote of 15 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 10 to 0.

The following is a summary of the House Committee Substitute for HBs 1945 & 2570.

This bill requires the professional component of clinical pathology services provided by a hospital-based pathologist to be recognized as distinct physician services by the MO HealthNet program, which will reimburse the professional component of clinical pathology services provided to MO HealthNet participants. Payment will be made directly to the licensed physician providing the services or the entity that has been assigned by the right to receive payment for services provided.

If a state plan amendment is determined by the Department of Social Services to be required, the Department must submit the amendment in a timely manner and make all reasonable efforts to obtain Federal approval.

Currently, no person or outlet can act as a wholesale drug distributor, pharmacy distributor, drug outsourcer, or third-party logistics provider without obtaining a license from the Missouri Board of Pharmacy. Temporary licenses can be granted while an application is being processed. Separate licenses are required for each distribution site.

The Board can permit out-of-state entities to be licensed in Missouri if they possess a valid license from another state with comparable standards and if the other state offers reciprocal treatment to Missouri entities.

This bill provides that if a state license is not issued by the out-of-state wholesale drug distributor's resident state, out-of-state wholesale drug distributors and third-party logistics providers with a current and valid drug distributor accreditation from the National Association of Boards of Pharmacy or its successor can be eligible for the license.

The bill prohibits health carriers or health benefit plans from establishing or implementing any policy or practice that imposes

a time limit for the payment of anesthesia services provided during a medical or surgical procedure. Moreover, health carriers or health benefit plans are prohibited from establishing or implementing any policy that restricts or excludes all anesthesia time in calculating the payment of anesthesia services. Excepted benefit plans will be subject to the requirements of this bill.

The following is a summary of the public testimony from the committee hearing. The testimony was based on the introduced version of the bill.

PROPONENTS: Supporters say that the provisions relating to anesthesia are needed after an insurance company nearly imposed such a policy. It would put unnecessary pressure on physicians and could complicate the provision of care.

Testifying in person for the bill were Representative Hruza; Missouri Association of Nurse Anesthetists; Missouri State Medical Association; Missouri Association of Osteopathic Physicians and Surgeons; Missouri State Orthopedic Association; Missouri Gastroenterology Society; Richard McIntosh, MAWD Pathology; Samuel Caughron, MD, The Missouri Society of Pathologists; and Arnie Dienoff.

OPPONENTS: Those who oppose the bill say that currently, no insurance company is involved in this type of thing or has such a policy. Additionally, the term "anesthesia practitioner" in the bill could generate confusion about scope of practice.

Testifying in person against the bill was Missouri Insurance Coalition.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.